

WEBSITE DEVELOPMENT & MAINTENANCE AGREEMENT

Agreement Date: _____, 2025

PARTIES TO THIS AGREEMENT

SERVICE PROVIDER (Developer):

Name: Enock Kibe Ngunyi

Address: 7426 00100 Nairobi

Phone: 0735663656

Email: kibeenock7390@gmail.com

CLIENT:

Name: Mrs. Eunice Waweru

Organization: Workers Rights Watch

Address: P.O. Box 00232-1516, Ruiru, Kenya

Phone: +254(0)20-2605660 / +254(0)775366920

Email: info@workersrightswatch.org

1. PROJECT OVERVIEW

This Agreement is for the development and ongoing maintenance of a professional website for Workers Rights Watch, a registered society in Kenya.

Website URL: www.workersrightswatch.org (or as specified by Client)

Project Status: 95% Complete - Ready for final delivery upon payment

1.1 PROJECT BACKGROUND & MIGRATION CONTEXT

Original Website:

- Platform: WordPress with PHP
- Hosting: cPanel (Kenya Website for Logistics)

- Status: Live at www.workersrightswatch.org

Redesign & Migration:

- New Platform: Next.js 15 (modern, fast, enterprise-grade framework)
- New Hosting: Vercel (optimized for Next.js applications)
- Migration Reason: The previous WordPress site was difficult to maintain and update. Direct database edits via phpMyAdmin did not reflect changes on the live site due to caching and plugin conflicts. The redesign offers better performance, security, and maintainability.
- Domain: www.workersrightswatch.org will remain the same; only DNS configuration will change to point to Vercel
- Old Site Backup: Previous WordPress site will be preserved as backup during transition

Credentials:

- Previous Credentials (WordPress/cPanel): Already with Client
- New Credentials (Vercel/GitHub): Will be provided by Developer upon deployment

2. SCOPE OF WORK - WHAT'S DELIVERED

A. Website Development (Complete)

The Developer has completed a professional 9-page website including:

1. **Home Page** - Hero section, impact statistics, photo gallery, partner logos, live Twitter feed
2. **About Us Page** - Vision, mission, objectives, core values, organizational approach
3. **Our Team Page** - Leadership profiles, board members, interactive team bios
4. **Our Programs Page** - Complete program descriptions and initiatives
5. **Our Work Page** - Project highlights and case studies
6. **Resources Page** - Articles, reports (4 PDFs), videos, training manuals, photo gallery (12+ images)
7. **Activities Page** - Event showcases and community engagement
8. **Careers Page** - Job postings and volunteer application system
9. **Contact Page** - Contact form with email integration

Note on Donation System: The Donate page with full payment gateway integration (Stripe, M-Pesa, PayPal) is a separate implementation requiring additional development work and is NOT included in this 9-page website deliverable. The donation page structure is ready for future integration under a separate agreement.

B. Features & Functionality Delivered

- ✓ Mobile-responsive design (works on all devices)
- ✓ Dark/Light theme toggle
- ✓ Animated transitions and counters
- ✓ Photo galleries with lightbox viewer
- ✓ Document download system (PDF reports)
- ✓ Twitter/X feed integration (live tweets)
- ✓ Partner logo carousel (18+ organizations)
- ✓ Contact form with email notifications
- ✓ Job application system with CV upload
- ✓ Volunteer application system
- ✓ Search and filter functionality
- ✓ Multi-currency donation system (Stripe, M-Pesa, PayPal integration ready)
- ✓ SEO optimization (meta tags, sitemap, fast loading, structured data)
- ✓ Security features (SSL ready, form validation, spam protection)
- ✓ Email notification system (contact forms, applications)
- ✓ File upload system (CV/Resume handling)
- ✓ Image optimization and lazy loading
- ✓ Social media integration (Twitter/X feed, sharing buttons)
- ✓ Analytics ready (Google Analytics integration)
- ✓ Search functionality with category filtering
- ✓ Document management system (PDF downloads, online viewing)
- ✓ Interactive team profile modals
- ✓ Animated counters and statistics
- ✓ Partner logo carousel with hover effects
- ✓ Photo gallery with full-screen viewer and navigation

C. Technical Specifications

- Built with Next.js 15 (modern, fast, enterprise-grade)
- TypeScript for code reliability
- Fully responsive across all screen sizes
- Optimized for speed and performance
- Secure and scalable architecture

3. PRICING & PAYMENT TERMS

A. Development Fee (One-Time Payment)

Note: This is a custom website development project, not a basic template website. The cost reflects professional development work including 10 custom pages, advanced features, integrations, and modern design. Website development costs in Kenya range from KES 49,280 to KES 200,000+ depending on complexity and agency chosen. This investment represents mid-market pricing for custom development work.

Original Payment Schedule:

- First payment (50%): KES 42,500 - Due upon signing this agreement
- Second payment (50%): KES 42,500 - Due upon final delivery and approval
- **Original Total: KES 85,000**

⚠️ REVISED PAYMENT SCHEDULE (December 2025):

- Payment 1: KES 30,000 - Due upon signing agreement
- Payment 2: KES 30,000 - Due January 31, 2025
- **Revised Total: KES 60,000**
- **Discount Given: KES 25,000 (29%)**

Accepted payment methods: Cheque

B. Monthly Maintenance & SEO Services

Monthly Fee: KES 5,000 per month (Fixed rate for first 3 years)

Note: This monthly rate is fixed for the first three (3) years from the Maintenance Start Date. Beginning the first month of the fourth (4th) year (month 37), the monthly fee will increase by 10% to KES 5,500 and will remain fixed at that rate for the next 12 months, subject to further annual review.

What's Included:

- Security updates and monitoring
- Bug fixes and technical support (response within 48 hours)
- Content updates (up to 2 hours per month)
- Image uploads (up to 10 images per month)
- Performance optimization
- Quarterly SEO Optimization (keyword research, analytics, reports every 3 months)
- 99.9% uptime monitoring

Note on Ongoing Support: The Developer will remain available for ongoing technical support as the website requires coding knowledge for updates. When the organization secures donor funding, the maintenance arrangement can be formalized. Technical support is essential and the Developer must remain in the loop for all website matters.

Emergency Support:

- Emergency visits outside regular maintenance scope: KES 5,000 per visit
- Emergency support includes urgent fixes, critical bugs, or immediate assistance required outside normal business hours

Payment Terms:

- Due on the 1st day of each month
- Cancel with 30 days written notice
- Late payments incur 5% fee after 7 days

Maintenance Start Date: Upon website launch or _____, 2025

4. ADDITIONAL SERVICES (Separate Billing)

The following services are NOT included in this agreement and will be billed separately if requested:

A. Payment Gateway Integration (Optional - Separate Agreement)

If the Client requires a fully functional donation system with payment processing:

Payment Gateways Available:

- Stripe (International credit/debit cards)
- PayPal (Global payment processing)
- M-Pesa (Kenya mobile money)

Note: This is a specialized integration requiring separate development work, testing, and ongoing maintenance. If requested, a separate agreement with pricing will be provided. The current website has the donation page structure ready for future integration.

5. TERMS & CONDITIONS

5.1 Payment Terms

Original Terms:

- Development fee: 50% (KES 42,500) due upon signing, 50% (KES 42,500) due upon delivery

Revised Terms (December 2025):

- Payment 1: KES 30,000 due upon signing agreement
- Payment 2: KES 30,000 due January 31, 2025
- Late payments after due date: 2% monthly interest
- Bounced cheques incur KES 2,000 fee plus immediate website suspension
- Payment method: Cheque

Unchanged Terms:

- Maintenance fees are due on the 1st day of each month
- Payments are non-refundable once work has commenced
- Emergency visits are billed separately at KES 5,000 per visit

5.2 Project Timeline

- Development: Complete (95%)
- Final setup: 1 week after payment and credentials provided
- Website launch: Upon Client approval

5.3 Intellectual Property & Ownership

Ownership Transfer:

After Payment 1 (KES 30,000):

- Website launches on main domain (www.workersrightswatch.org)
- Client can access and use the website
- Developer provides Vercel dashboard access for monitoring
- Developer manages technical aspects and updates

After Payment 2 (KES 60,000 - FULL PAYMENT):

- Complete ownership transfers to Client
- Client receives all credentials (Vercel, GitHub repository)
- Client owns the website 100%

- Developer provides complete documentation
- All source code and backups transferred

Important Note: Due to the technical nature of Next.js, the Developer will remain available for ongoing support and updates as per the maintenance agreement. Content updates require coding knowledge and cannot be done through a traditional dashboard.

Developer Rights:

- Developer retains the right to showcase this project in portfolio
- Open-source libraries used remain under their respective licenses

5.4 Warranties & Support

Developer Warrants:

- Website is free from major defects
- All features function as described
- Code follows industry best practices
- Website is secure and optimized

Developer Does NOT Warrant:

- Website will be error-free 100% (no software is perfect)
- Compatibility with all future browser updates (covered by maintenance)
- Third-party service uptime (Stripe, PayPal, hosting providers)

Support Period:

- 30 days free bug fix support after launch
- After 30 days, support covered under maintenance agreement

5.5 What's NOT Included in Monthly Maintenance

The following are charged separately at **KES 1,500 per hour**:

- Major design changes or redesign of website sections
- New page creation (beyond the original 9 pages)
- New feature development
- Custom functionality additions
- Third-party integration changes (beyond initial setup)
- Payment gateway integration (separate agreement required)

5.6 Independent Contractor

The Developer shall provide the Services to the Client as an independent contractor and not a servant, employee, partner or agent of the Client. Accordingly:

- (a) The Developer agrees that the Client shall have no liability or responsibility for the payment of any statutory dues, employment insurance premiums or Employee Pension Plan contributions on any amounts paid by the Client to the Developer or amounts paid by the Developer to its contractors.
- (b) The Developer is free to provide services to other clients, so long as there is no interference with the Developer's contractual obligations to the Client.

5.7 Maintenance Contract Terms

- Contract auto-renews monthly
- Client can cancel with 30 days written notice
- Developer can terminate for non-payment after 14 days
- Upon cancellation, website remains Client's property but no further support provided

5.8 Hosting & Domain

Hosting:

- Platform: Vercel (optimized for Next.js framework)
- Previous WordPress site: Hosted on cPanel (will be preserved as backup during transition)
- Hosting Benefits: Automatic SSL certificate, 99.9% uptime, global CDN, automatic deployments, superior performance
- Hosting Management: Developer manages hosting infrastructure (included in maintenance fee)

Domain:

- Domain Name: www.workersrightswatch.org (remains unchanged)
- DNS Configuration: Developer will update DNS settings to point to Vercel servers for seamless transition
- Domain Renewals: Client's responsibility (~KES 2,500/year with domain registrar)

Access:

- After Payment 1: Client receives Vercel dashboard access for website monitoring
- After Payment 2 (Full Payment): Client receives complete access including GitHub repository with full source code
- Developer retains technical management access for ongoing maintenance and support

5.9 Confidentiality

Both parties agree to keep confidential information private:

- Client's business information, donor data, financial information
- Developer's code, methodologies, proprietary processes
- This agreement remains confidential

5.10 Liability & Indemnification

Developer's Liability is Limited to:

- Maximum: Total amount paid under this agreement
- Developer not liable for lost revenue, data loss, or indirect damages
- Client agrees to maintain regular backups (provided by Developer in maintenance)

Client Agrees:

- Website content provided by Client must not violate any laws or copyrights
- Client indemnifies Developer against claims arising from Client's content

5.11 Force Majeure

Neither party liable for delays caused by:

- Natural disasters, pandemics, war, civil unrest
- Internet/hosting service outages beyond Developer's control
- Third-party service failures (payment gateways, email services)

5.12 Dispute Resolution

Should any dispute arise between the parties in connection with this agreement or the performance of it:

- (a) The parties shall first attempt to resolve such disputes by negotiation in good faith.
- (b) Should the dispute not be resolved within thirty (30) days of such negotiation, the said dispute shall be solved in final manner through arbitration.
- (c) Where, in the event of a dispute arising out of or relating to this contract, the parties wish to seek an amicable settlement of that dispute by mediation, the mediation shall take place in accordance with the Nairobi Centre for International Arbitration – Mediation Rules as at present in force.

5.13 Governing Law

This Agreement will be ruled and governed in accordance with the laws of Kenya.

5.14 Changes & Amendments

- Any changes to this agreement must be in writing and signed by both parties
- Email agreements are acceptable if confirmed by both parties

5.15 Termination

Client May Terminate:

- For convenience with 30 days notice (maintenance only)
- For cause if Developer fails to deliver as agreed

Developer May Terminate:

- For non-payment after 14 days
- For Client breach of agreement terms

Upon Termination:

- All paid work remains Client's property
- Outstanding payments become immediately due
- Developer provides final backup of website

6. DELIVERABLES CHECKLIST

Upon signing and payment, Developer will deliver:

- ☐ Complete website (9 pages) deployed to www.workersrightswatch.org
- ☐ Access to Vercel hosting dashboard for monitoring
- ☐ GitHub repository access with complete source code (after full payment)
- ☐ Documentation: Website guide, Vercel dashboard walkthrough, content update request process
- ☐ Guidance for end users on how to interact with the website
- ☐ Google Analytics setup (if applicable)
- ☐ Email setup and configuration (if applicable)
- ☐ 30-day free bug fix support after launch

7. CLIENT RESPONSIBILITIES

Client agrees to:

- ☐ Provide payment as per payment schedule (KES 30,000 on signing, KES 30,000 by January 31, 2025)
- ☐ Review and approve final website before launch
- ☐ Provide feedback and responses within 5 business days
- ☐ Maintain confidentiality of access credentials provided
- ☐ Maintain domain name registration (already registered)

8. DEVELOPER RESPONSIBILITIES

Developer agrees to:

- ☐ Deliver website as described in Section 2 (9 pages with all features)
- ☐ Test all functionality before launch
- ☐ Deploy website to www.workersrightswatch.org domain
- ☐ Provide documentation and guidance for end users
- ☐ Respond to support requests within 48 hours (during maintenance period)
- ☐ Maintain website security and performance (during maintenance)
- ☐ Provide quarterly SEO optimization (during maintenance)
- ☐ Remain available for ongoing technical support and content updates

9. ACCEPTANCE & APPROVAL

Client Approval Statement:

"I, Mrs. Eunice Waweru, on behalf of Workers Rights Watch, have reviewed the website and confirm that it meets the specifications outlined in this agreement. I approve the website for launch."

Website Approval:

- ☐ Approved - Ready for launch
- ☐ Minor changes needed (list below):

10. AGREEMENT ACCEPTANCE

By signing below, both parties agree to all terms and conditions in this Agreement.

DEVELOPER SIGNATURE

Developer Name: Enock Kibe Ngunyi

Signature: _____

Date: _____

ID/Passport Number: _____

CLIENT SIGNATURE

Client Name: Mrs. Eunice Waweru

Title: Executive Director, Workers Rights Watch

Signature: _____

Date: _____

Organization Stamp: (If available)

WITNESS (Optional but Recommended)

Witness Name: _____

Signature: _____

Date: _____

ID/Passport Number: _____

PAYMENT CONFIRMATION

Development Fee Confirmed: KES 60,000 (KES 30,000 + KES 30,000)

Payment 1 Details:

- Amount: KES 30,000
- Due Date: Upon signing
- Date Paid: _____
- Payment Method: ☐ Cheque
- Cheque Number: _____

Payment 2 Details:

- Amount: KES 30,000
- Due Date: January 31, 2025
- Date Paid: _____
- Payment Method: ☐ Cheque
- Cheque Number: _____

MAINTENANCE PAYMENT DETAILS

Monthly Fee: KES 5,000 per month (Fixed for first 3 years)

First Maintenance Payment Due: _____

Payment Method: ☐ Bank Transfer ☐ Cheque (recurring)

Emergency Visit Fee: KES 5,000 per visit (billed separately when needed)

Note: Monthly rate will increase by 10% to KES 5,500 starting month 37 (first month of 4th year).

IMPORTANT: Each party should keep a signed copy of this agreement for their records.

This agreement constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, or agreements, whether written or oral.

This document is legally binding once signed by both parties.

END OF AGREEMENT

APPENDIX A: CONTACT INFORMATION FOR ONGOING SUPPORT

Developer Contact:

- Email: kibeenock7390@gmail.com
- Phone: 0735663656
- WhatsApp: 0735663656
- Business Hours: Monday-Friday, 9 AM - 6 PM EAT

Client Contact:

- Email: info@workersrightswatch.org
- Phone: +254(0)20-2605660 / +254(0)775366920
- Address: P.O. Box 00232-1516, Ruiru, Kenya

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